

HOUSE BILL 2364

By Hawk

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to school safety.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-4204(a)(2), is amended by adding the following as a new subdivision:

(D) School employee who:

(i) Is designated by the principal to conduct a search pursuant to subsection (a) in the principal's absence; and

(ii) Has completed training pursuant to § 49-6-4212.

SECTION 2. Tennessee Code Annotated, Section 49-6-4205(a)(2), is amended by adding the following as a new subdivision:

(D) School employee who:

(i) Is designated by the principal to conduct a search pursuant to subsection (a) in the principal's absence; and

(ii) Has completed training pursuant to § 49-6-4212.

SECTION 3. Tennessee Code Annotated, Section 49-6-4212(a), is amended by deleting subdivision (3) and substituting instead the following:

(3) A school administrator, or school employee designated by a school principal to conduct a search pursuant to § 49-6-4204(a)(2)(D) or § 49-6-4205(a)(2)(D) in the principal's absence, must complete the orientation and training program developed by the department pursuant to subdivision (a)(1) prior to conducting a search pursuant to § 49-6-4204(a)(2)(C) or (D) or § 49-6-4205(a)(2)(C) or (D), as applicable.

SECTION 4. Tennessee Code Annotated, Section 49-6-2704, is amended by deleting the section and substituting instead the following:

(a) An LEA that receives, from a threat assessment team or any other source, information regarding a threat of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, a public school in the LEA, and that reports the threat or disruptive behavior to a state or local law enforcement agency, shall notify the parents and guardians of students enrolled in the public school of the threat or disruptive behavior, but only if the threat or disruptive behavior is determined by the LEA to be credible following a threat assessment conducted pursuant to a policy of the local board of education or a threat assessment protocol approved by the department of education.

(b) The LEA shall notify parents and guardians within forty-eight (48) hours of the LEA determining that the threat of violence or significantly disruptive behavior is credible. Parental notification made pursuant to this subsection (b) may be made using existing communication methods for providing information to parents and guardians.

(c) For purposes of this section, a report made to a school resource officer, as defined in § 49-6-4202, or an off-duty law enforcement officer who is serving as an armed school security officer pursuant to § 49-6-809, is not a report to a state or local law enforcement agency. The involvement of a school resource officer or an armed school security officer, or any consultation by a school resource officer, armed school security officer, or any other administrative staff or school personnel with a state or local law enforcement agency or the department of safety for purposes of assessing, investigating, or requesting assistance with a threat of violence or significantly disruptive behavior does not, on its own, constitute a determination by the LEA that the threat or disruptive behavior is credible for purposes of subsection (a).

(d) Each local board of education shall report at each quarterly meeting:

(1) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, a public school in the LEA determined by the LEA to be credible requiring notice to parents and guardians in accordance with subsection (b) for the respective quarter; and

(2) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, a public school in the LEA determined by the LEA to be credible requiring notice to parents and guardians in accordance with subsection (b) for the year to date.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.